

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

May 27, 2025

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Dr. Kathy Emmons, Ken Esquibel, Pete Laybourn (via Zoom), Mark Moody, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, City Clerk. The pledge of allegiance was recited.

Expression of Appreciation of the 2024-2025 Youth Council and State of the Youth Address was made.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Moody and Mr. White, items #17, #19, #21 and #28(a) were removed from the Consent Agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Moody and Mr. Segrave, item #22 was removed from the Consent Agenda. Upon request by Mr. Moody, and pursuant to support received by Dr. Aldrich and Mr. Laybourn, item #28(c) was removed from the Consent Agenda. Mr. White moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on May 12, 2025. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the City-initiated annexation of 95 parcels of land totaling roughly 44.56 acres comprised of various tracts of land and rights-of-way situate in northeast Cheyenne generally located north of Dell Range Boulevard, east and west of Ridge Road, and south of Storey Boulevard. Public comments were made by: Daniel Singh, Mary Simons, Kevin Tanner, Jared Hasenauer and Exie Brown. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Moody and Mr. White. There being no further comments or input and the purpose of the public hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk's Office for Cheyenne Hokkaido LLC d/b/a Cheyenne Hokkaido Ramen, 1720 Capitol Ave., Cheyenne, WY. There being no comments or input and the purpose of the public hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Amending Sections 1.4.3, 1.4.4, and 5.7.2 of the Unified Development Code to amend specific uses allowed as Home Occupations and add clarifying definitions. Reporting for Public Services Committee, Mr. Segrave moved to approve on third and final reading, seconded by Dr. Aldrich. Mr. Segrave moved to amend by substitute dated May 9, 2025, seconded by Dr. Aldrich. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Mr. Segrave moved to amend section 5.7.2 (j)(5) to add after “employing” to include “or apprenticing”, seconded by Dr. Aldrich. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute, as amended, carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Dr. Rinne voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Moody. (#4623)

ORDINANCE –2nd READING – Appropriating moneys for the City of Cheyenne, Wyoming, for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2025, and ending June 30, 2026. Reporting for the Committee of the Whole, Dr. Rinne moved to approve on second reading, seconded by Mr. White. Dr. Rinne moved to amend by substitute dated May 22, 2025, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Dr. Aldrich moved to amend to increase the City Council’s Regular Employee line item by \$6,346.00 and applicable benefit line items by \$1,548.00 and decrease the Miscellaneous Insurance line item by \$7,894.00, seconded by Mr. Esquibel. Motion to amend carried. Voting “yes” – all members of the governing body. Mr. Moody moved to amend to decrease the City Council Professional Development line item by \$1,000.00 and to increase the Miscellaneous Fund by \$1,000.00. Motion to amend died due to lack of second. Mr. Esquibel moved to amend to increase the Community Recreation and Events Clean and Safe Program, Maintenance and Supplies line item by \$10,000.00 and decrease the City Reserves fund by the same amount, seconded by Dr. Emmons. Motion to amend failed. Voting “no” – all members of the governing body with the exception of Dr. Emmons, Mr. Esquibel and Mr. Roybal voting “yes”. Main motion, as amended by substitute, as amended, carried. Voting “yes” – all members of the governing body. Public comment was made by: Lisa Rattery and Josie Forin. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons and Dr. Rinne. The following is a summary of the proposed budget including aforementioned amendments: General Fund, \$74,517,876; Weed and Pest, \$801,700; Youth Alternatives Grants, \$919,234; Recreation Programs, \$2,656,270, Community Development Block Grant, \$660,183; Law Enforcement Grants, \$267,441; Miscellaneous Federal Grants, \$1,125,070; Transportation Planning, \$1,805,225; Transit, \$6,023,629; Juvenile Justice, \$280,726; Youth Alternatives Mentoring, \$73,794; Development Impact Fees, \$1,531,100; One Percent Sales Tax, \$13,878,876; Specific Purpose Option Tax, \$595,554; Youth Activities, \$19,195; Golf Facilities, \$570,700; Fleet Maintenance, \$7,090,211; Solid Waste Management, \$21,513,486; Civic Center, \$2,369,999; Ice & Events Center, \$970,215; Surface Water Mitigation, \$5,983,757; Perpetual Care, \$16,400; Self-Insurance \$11,203,838; Total City, \$154,874,481; Water Enterprise, \$31,851,815; Sewer Enterprise, \$16,920,270; Total Appropriation, \$203,646,566.

ORDINANCE –2nd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. Moody moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Moody voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins.

ORDINANCE –1st READING — Amending portions of the Unified Development Code, modifying provisions related to Park Impact Fees, including the timing of fee payment and permitted uses of such fees, and making conforming amendments thereto – referred to Public Services Committee. (Sponsor – Mr. Segrave)

ORDINANCE –1st READING — Amending portions of the Unified Development Code regarding signage, to increase allowances for window signs and further clarifying prohibited signs – referred to Public Services Committee. (Sponsors – Mr. Moody and Mr. Segrave)

ORDINANCE –1st READING — Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current city limits situate in northeast Cheyenne generally located north of Dell Range Boulevard, east and west of Ridge Road and south of Storey Boulevard – referred to Public Services Committee. (Sponsor – Mr. Segrave)

ORDINANCE –1st READING — Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classifications of: AG – Agriculture; MR – Medium-Density Residential; MUR – Mixed-Use Residential; and, CB – Community Business, for land annexed to the City of Cheyenne generally located north of Dell Range Boulevard, east and west of Ridge Road and south of Storey Boulevard – referred to Public Services Committee. (Sponsor – Mr. Segrave)

RESOLUTION – Granting an exception to the '201 Agreement' for the owner of the property located south of High Plains Road and west of South Greeley Highway, between Robert Avenue and Dayshia Lane (Postponed from May 12, 2025). Mr. Segrave moved to adopt, seconded by Mr. White. Mr. Segrave moved to amend by substitute dated May 16, 2025, seconded by Dr. Rinne. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion, as amended, carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Public comment was made by: Tanya Keller. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons and Dr. Rinne. (#6466)

[CA] RESOLUTION – Authorizing the Mayor to execute a Memorandum of Understanding with Cheyenne Frontier Days, Inc., for the provision of public safety services during the annual Frontier Days events. Motion (per Consent Agenda) carried. (RES. #6467/CONT. #8174)

RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2025, and ending June 30, 2026. Mr. Moody declared a conflict of interest and vacated council chambers. Dr. Rinne moved to adopt, seconded

by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present in council chambers with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Following the announcement of the vote, Mr. Moody returned to council chambers. (#6468)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current city limits situate in east Cheyenne generally located south of Dell Range Boulevard, east of Dry Creek, west of Whitney Road, and north of Charles Street. Motion (per Consent Agenda) carried. (#6469)

RESOLUTION – Adopting a revised Cheyenne-Laramie County Board of Health fee schedule for various services and inspections. Dr. Emmons declared a conflict of interest and vacated council chambers. Mr. Moody moved to adopt, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present in council chambers with the exception of Mr. Moody voting “no”. Following the announcement of the vote, Dr. Emmons returned to council chambers. Public comment was made by: Jennifer Escobedo, Director of Cheyenne Laramie County Public Health. Comments were made by the following members of the governing body: Dr. Aldrich and Dr. Rinne. (#6470)

[CA] RESOLUTION – To temporarily reduce the monthly parking fee at the Jack C. Spiker parking structure, effective July 1, 2025, through June 30, 2026. Motion (per Consent Agenda) carried. (#6471)

RESOLUTION – Approving sanitary sewer services, by Outside User Agreement for Sutherland's Fun Family Fitness, LLC, for land at 2611 and 2607 Whitney Road (located east of Whitney Road south of Pershing Boulevard). Mr. Segrave moved to adopt, seconded by Mr. White. Mr. Segrave moved to amend by substitute dated May 21, 2025, seconded by Dr. Aldrich. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion, as amended, carried. Voting “yes” – all members of the governing body. Public comment was made by: David Sutherland. Comment was made by the following member of the governing body: Dr. Aldrich. (#6472)

RESOLUTION – Approving sanitary sewer and water services, by Outside User Agreement, for Icerock Wyoming, LLC, for land located east of Clear Creek Parkway south of High Plains Road. Mr. Segrave moved to adopt, seconded by Mr. White. Mr. Segrave moved to amend by substitute dated May 21, 2025, seconded by Dr. Aldrich. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion, as amended, carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Public comment was made by: Jake Wilson, AVI P.C. Comment was made by the following member of the governing body: Dr. Aldrich. (#6473)

RESOLUTION – Modifying the conditions of approval of Resolution No. 6424, for an Outside User Agreement for water service for Oh Hail No LLC, for land located south of High Plains Road and west of South Greeley Highway, between Robert Avenue and Dayshia Lane. Mr. Segrave advised the item was reviewed under “other items for the agenda” at the May 19, 2025 Public Services Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Segrave moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members

of the governing body with the exception of Mr. Moody voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Segrave. (#6474)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the Fiscal Year beginning July 1, 2025, and ending June 30, 2026 – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Expressing the support of the Governing Body for the submission of an application by the Cheyenne Transit Program to the Wyoming Department of Transportation for grant funding under the Wyoming Rural Public Transit Program– referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Authorizing the Cheyenne Board of Public Utilities to execute a Grant Agreement with the Wyoming Office of Homeland Security for Federal Emergency Management Agency Building Resilient Infrastructure and Communities funding and to authorize the Director of the Board to execute all related documents – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Cheyenne Board of Public Utilities to discharge uncollectible debts pursuant to Wyoming Statute 16-4-502 – referred to Finance Committee. (Sponsor – Dr. Rinne)

Professional Services Agreement between the City of Cheyenne and GLM Design Group, LLC, for a feasibility study, benefit-cost analysis, and preliminary design of the Cheyenne Dry Creek Union Pacific Railroad Project (2023-2026 Optional 1% Sales Tax and FEMA BRIC Grant). Mr. Moody moved to approve in an amount not to exceed \$246,972.80, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Moody voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel and Mr. Moody. (#8175)

[CA] Memorandum of Understanding between the City of Cheyenne and the State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites & Trails to set forth the terms and conditions under which the Agency will oversee and disburse legislatively approved funding to the City to provide qualified project management for the High Plains Arboretum Rehabilitation Project. Motion (per Consent Agenda) carried (in an amount not to exceed \$3,323,757.00). (#8176)

Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization and Felsburg Holt & Ullevig for the Safe Streets for All Comprehensive Safety Action Plan (2021 Specific Purpose Option Tax Fund and Federal Highway Administration SS4A Grant). Mr. Moody moved to approve in an amount not to exceed \$250,000.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Laybourn, Mr. Moody and Mr. Segrave. (#8177)

[CA] Contract between the City of Cheyenne and Companion Life for Stop Loss Insurance for city employees (Various City Funds) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Board of Public Utilities and McGee, Hearne & Paiz (MHP), LLP to provide financial and compliance auditing services for the fiscal year ending June 30, 2025 (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and TDSi – The Design Studio, inc., for the South Lions Park Dunbar Field Improvements Design Services project (2021 Specific Purpose Option Tax Fund and Rec Mill Grant) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and the Wyoming Game and Fish Commission by and through the Wyoming Game and Fish Department to allow public access for hunting, without charge, to the Hunter Management Area located on the Belvoir Ranch (Revenue to the City) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Frog Creek Partners to define responsibilities with each party associated with the installation and maintenance of Gutter Bins installed within the city – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Cheyenne Downtown Development Authority for professional and administrative services for the fiscal year beginning July 1, 2025 and ending June 30, 2026 (General Fund) – referred to Finance Committee.

[CA] Renewal of Contract #7535 between the City of Cheyenne and Blue Cross Blue Shield of Wyoming for third party administrator services and group health insurance benefits for city employees (Various City Funds). Motion (per Consent Agenda) carried. (#7535)

[CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental insurance benefits for City employees (Various City Funds). Motion (per Consent Agenda) carried. (#6837)

[CA] Contract Modification #1 between the City of Cheyenne and Remix Technologies LLC to provide Transit Routing Software Services for the Cheyenne Transit Program (Transit Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7991 between the City of Cheyenne and S & S Builders, LLC for the 2024 Dell Range Concrete Repair for Overlay project (2023-2026 Optional 1% Sales Tax Fund and 2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-16-25 for an Agreement between the City of Cheyenne and Simon Contractors, for the 2025 Dell Range Overlay project (2021 Specific Purpose Option Tax Fund). Motion to accept bid (per Consent Agenda) carried (in an amount not to exceed \$3,237,502.80). (#8178)

[CA] Consideration to Purchase between the City of Cheyenne and UrbanSDK for the purchase of a three (3) year software subscription for geospatial vehicle traffic and infrastructure analytics platform (General Fund Reserves) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk’s Office for Fox & Friends Inc. d/b/a Spice Zone Indian Restaurant, 600 W. 19th St., Cheyenne, WY. Motion (per Consent Agenda) carried.

Reappointment of Keith Zabka to the Board of Public Utilities. Mr. Roybal moved to approve, seconded by Dr. Emmons. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

Appointments of Dixie Roberts to the Board of Public Utilities, Candice Wisdom to the Downtown Development Authority Board and Bradley Ray to the Cheyenne Airport Board. Dr. Aldrich moved to approve, seconded by Dr. Emmons. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

Urban Renewal Authority 2024 Annual Report. Mr. Segrave moved to acknowledge receipt of the report, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Dr. Aldrich.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held June 9, 2025 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 199.67 acres of land generally located east of South Greeley Highway and north of Chalk Bluff Road.

Announcement was made of a Public Hearing to be held June 9, 2025 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2026.

Public comment was made by the following under Other Business: Captain David Janes, Cheyenne Police Department.

The following member of the governing body made comments under Other Business: Dr. Emmons.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:05 pm.

Submitted by,

Kylie Soden,
City Clerk

This notice is available in alternative, accessible formats upon request.

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